

**SUBSTITUTE FOR
SENATE BILL NO. 267**

A bill to create a Michigan-African-Caribbean trade commission and to prescribe its powers and duties; to create a fund; and to prescribe the powers and duties of certain state officers and entities.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. (1) The Michigan-African-Caribbean trade commission is
2 created within the department of labor and economic opportunity.
3 The commission shall serve as a catalyst and strategic advising
4 body for international economic development, job creation, and
5 mutually beneficial trade between this state and Africa and the
6 Caribbean. The commission shall advance Michigan's competitiveness
7 in global markets through strategic cooperation in the areas of
8 critical minerals, automotive and mobility technology, agricultural



1 products, and information technology services.

2 (2) The commission consists of the following members,
3 appointed by the governor:

4 (a) One representative from a Michigan public institution of
5 higher education selected from a list of 3 or more individuals
6 submitted by the speaker of the house of representatives.

7 (b) One individual from a Michigan-based chamber of commerce
8 or economic development body from a list of 3 or more individuals
9 submitted by the senate majority leader.

10 (c) Two individuals from African, African-American, or
11 Caribbean diaspora communities, 1 of the members selected from a
12 list of 3 or more individuals submitted by the speaker of the house
13 of representatives and 1 of the members selected from a list of 3
14 or more individuals submitted by the senate majority leader.

15 (d) One individual who is a Michigan-based agriculture or
16 commodities sector expert selected from a list of 3 or more
17 individuals submitted by the speaker of the house of
18 representatives.

19 (e) One individual from Michigan-based mobility, energy, or
20 manufacturing sectors selected from a list of 3 or more individuals
21 submitted by the senate majority leader.

22 (f) One individual from the Michigan information technology
23 sector or a digital innovation hub selected from a list of 3 or
24 more individuals submitted by the speaker of the house of
25 representatives.

26 (3) The governor shall appoint the first members of the
27 commission not later than 90 days after the effective date of this
28 act.

29 (4) The term of a member of the commission is 2 years or until



1 a successor is appointed under subsection (2), whichever is later.

2 (5) If a vacancy occurs on the commission, the governor shall
3 appoint an individual to fill the vacancy for the balance of the
4 term.

5 (6) The governor may remove a member of the commission for
6 incompetence, dereliction of duty, malfeasance, misfeasance, or
7 nonfeasance in office, or any other good cause.

8 (7) The governor shall call the first meeting of the
9 commission. At the first meeting, the commission shall elect a
10 member as a chairperson and may elect other officers that it
11 considers necessary or appropriate. The commission shall meet at
12 least quarterly, or more frequently at the call of the chairperson
13 or at the request of 5 or more members.

14 (8) A majority of the members of the commission constitute a
15 quorum for transacting business. A vote in favor by a majority of
16 the members of the commission serving is required for any action of
17 the commission.

18 (9) The commission shall conduct its business in compliance
19 with the open meetings act, 1976 PA 267, MCL 15.261 to 15.275.

20 (10) A writing that is prepared, owned, used, possessed, or
21 retained by the commission in performing an official function is
22 subject to the freedom of information act, 1976 PA 442, MCL 15.231
23 to 15.246.

24 (11) A member of the commission is not entitled to
25 compensation for service on the commission, but the commission may
26 reimburse a member for actual and necessary expenses incurred in
27 serving.

28 (12) The commission shall do all of the following:

29 (a) Advance bilateral trade and investment between Michigan



1 and Africa and the Caribbean.

2 (b) Initiate joint action on policy issues of mutual interest
3 to Michigan and Africa and the Caribbean.

4 (c) Promote business and academic exchanges between Michigan
5 and Africa and the Caribbean.

6 (d) Encourage mutual economic support between Michigan and
7 Africa and the Caribbean.

8 (e) Encourage mutual investment in the infrastructure of
9 Michigan and Africa and the Caribbean.

10 (f) Address any other issues the commission determines.

11 (g) Promote the import and processing of critical minerals and
12 other strategic resources essential to this state's mobility and
13 electronics sectors.

14 (h) Facilitate bilateral partnerships in automotive and
15 mobility innovation, including electric vehicle technology and
16 smart infrastructure development.

17 (i) Support the importation, packaging, and distribution of
18 agricultural products, such as sesame, cassava, coffee, tea,
19 vanilla, fish, and cashews, to create new supply chains and food
20 industry jobs in this state.

21 (j) Encourage digital trade and cooperation in emerging
22 information technologies, including fintech, AI, and remote
23 workforce development.

24 (k) Advance IT collaborations in fintech, e-commerce, and
25 remote education.

26 (l) Leverage this state's logistics infrastructure, including
27 ports, rail, and air cargo, to increase bilateral trade flow.

28 (13) The commission shall report any findings and results
29 collected in the immediately previous year and recommendations to



1 the governor and the legislature by February 1, 2027 and each
2 February 1 thereafter. The report described in this subsection must
3 include the following information:

4 (a) Total bilateral trade volume increase.

5 (b) Number of Michigan-based jobs created.

6 (c) Number of African businesses engaged.

7 (d) Number of Caribbean businesses engaged.

8 (e) Volume and value of critical mineral, mobility, agro-
9 product, and IT trade.

10 (f) New public-private partnerships formed.

11 (14) The commission is authorized to raise funds, through
12 direct solicitation or other fund-raising events, alone or with
13 other groups, and accept gifts, grants, and bequests from
14 individuals, corporations, foundations, governmental agencies,
15 public and private organizations, and institutions, to minimize the
16 commission's administrative expenses and to carry out its purposes
17 as set forth in this act.

18 (15) The Michigan-African-Caribbean trade commission fund is
19 created in the state treasury. The state treasurer shall deposit
20 funds, gifts, grants, and bequests received under subsection (14)
21 in the fund. The state treasurer shall direct the investment of
22 money in the fund and credit interest and earnings from the
23 investments to the fund. The department of treasury is the
24 administrator of the fund for audits of the fund. Money in the fund
25 at the close of the fiscal year does not lapse to the general fund.
26 The department of treasury shall expend money from the fund on an
27 annual basis upon appropriation only to minimize the commission's
28 administrative expenses and to enable the commission to carry out
29 its purposes as set forth in this act.



1 (16) The commission shall identify and support initiatives
2 that promote job creation in this state and internationally through
3 bilateral trade activities. Priority must be given to projects that
4 lead to the establishment of local processing facilities,
5 distribution centers, digital platforms, and advanced manufacturing
6 partnerships.

7 (17) As used in this section:

8 (a) "Commission" means the Michigan-African-Caribbean trade
9 commission created under subsection (1).

10 (b) "Fund" means the Michigan-African-Caribbean trade
11 commission fund created under subsection (15).